

Opinion of the Court

III

Amicus' arguments to the contrary have aided our consideration of this case, but they have not dissuaded us from concluding that the Appeals Council's dismissal of Smith's claim satisfied § 405(g).

Amicus first argues that the phrase "final decision . . . made after a hearing" refers to a conclusive disposition, after exhaustion, of a benefits claim on the merits—that is, on a basis for which the Social Security Act entitles a claimant to a hearing. This reading follows, *amicus* argues, from the Court's observations that § 405(g) generally requires exhaustion, and moreover from *Sanders*' suggestion, see 430 U. S., at 108, that review is not called for where a claimant loses on an agency-determined procedural ground that is divorced from the substantive matters for which a hearing is required. Even if Smith did receive a hearing on the merits, *amicus* argues, the conclusive determination was not on that basis, and "[i]t would be unnatural to read the statute as throwing open the gates to judicial review of any final decision, no matter how collateral," just because such a hearing occurred. Brief for Court-Appointed *Amicus Curiae* 34.

We disagree. First, as noted above, the Court's precedents do not make exhaustion a pure necessity, indicating instead that while the SSA is empowered to define the steps claimants must generally take, the SSA is not also the unreviewable arbiter of whether a claimant has sufficiently complied with those steps. See *supra*, at 478, and n. 7. Second, the Appeals Council's dismissal is not merely collateral; such a dismissal calls an end to a proceeding in which a substantial factual record has already been developed and on which considerable resources have already been expended. See *supra*, at 482–483, and n. 16. Accepting *amicus*' argument would mean that a claimant could make it to the end of the

make clear that a hearing is not always required. See *supra*, at 479–480. Because such a situation is not before us, we do not address it.

Opinion of the Court

SSA's process and then have judicial review precluded simply because the Appeals Council stamped "untimely" on the request, even if that designation were patently inaccurate. While there may be contexts in which the law is so unforgiving, this is not one. See *supra*, at 481–483.

Smith's case, as noted above, is also distinct from *Sanders*. See *supra*, at 480–481. *Sanders*, after all, involved the SSA's denial of a petition for reopening—a second look that the agency had made available to claimants as a matter of grace. See 430 U. S., at 101–102, 107–108. But Smith is not seeking a second look at an already-final denial; he argues that he was wrongly prevented from continuing to pursue his primary claim for benefits. That primary claim, meanwhile, is indeed a matter of statutory entitlement. See § 405(b).

Amicus also emphasizes that the SSA handles a large volume of claims, such that a decision providing for greater judicial review could risk a flood of litigation. That result seems unlikely for a few reasons. First, the number of Appeals Council untimeliness dismissals is comparatively small—something on the order of 2,500 dismissals out of 160,000 dispositions per year.¹⁸ Second, the interpretation that Smith and the Government urge has been the law since 1983 in the Eleventh Circuit, and the data there do not bear out *amicus*' warning. See Reply Brief for Respondent 14–15 (collecting statistics). Third, while *amicus* flags related contexts that could be informed by today's ruling, see Brief for Court-Appointed *Amicus Curiae* 36–40, those issues are not before us. We therefore do not address them other than to reinforce that such questions must be considered in the light of "the particular administrative scheme at issue." See *Salfi*, 422 U. S., at 765. Today's decision, therefore, hardly knocks loose a line of dominoes.

¹⁸ See Brief for Respondent 43, n. 17 (number of timeliness dismissals); SSA, Annual Statistical Supplement 2018 (Table 2.F11) (number of dispositions), <https://www.ssa.gov/policy/docs/statcomps/supplement/2018/2f8-2f11.pdf>.

Opinion of the Court

Finally, *amicus* argues that the meaning of § 405(g) is ambiguous and that the SSA's longstanding interpretation of § 405(g)—prior to its changed position during the pendency of this case—is entitled to deference under *Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U. S. 837 (1984). The Government and Smith maintain that the statute unambiguously supports the Government's new position, and Smith further asserts that deference is inappropriate where the Government itself has rejected the interpretation in question in its filings.

We need not decide whether the statute is unambiguous or what to do with the curious situation of an *amicus curiae* seeking deference for an interpretation that the Government's briefing rejects. *Chevron* deference “is premised on the theory that a statute's ambiguity constitutes an implicit delegation from Congress to the agency to fill in the statutory gaps.” *King v. Burwell*, 576 U. S. 473, 485 (2015). The scope of judicial review, meanwhile, is hardly the kind of question that the Court presumes that Congress implicitly delegated to an agency.

Indeed, roughly six years after *Chevron* was decided, the Court declined to give *Chevron* deference to the Secretary of Labor's interpretation of a federal statute that would have foreclosed private rights of action under certain circumstances. See *Adams Fruit Co. v. Barrett*, 494 U. S. 638, 649–650 (1990). As the Court explained, Congress' having created “a role for the Department of Labor in administering the statute” did “not empower the Secretary to regulate the scope of the judicial power vested by the statute.” *Id.*, at 650. Rather, “[a]lthough agency determinations within the scope of delegated authority are entitled to deference, it is fundamental ‘that an agency may not bootstrap itself into an area in which it has no jurisdiction.’” *Ibid.* Here, too, while Congress has empowered the SSA to create a scheme of administrative exhaustion, see *Sims*, 530 U. S., at 106,

Opinion of the Court

Congress did not delegate to the SSA the power to determine “the scope of the judicial power vested by” § 405(g) or to determine conclusively when its dictates are satisfied. *Adams Fruit Co.*, 494 U. S., at 650. Consequently, having concluded that Smith and the Government have the better reading of § 405(g), we need go no further.

IV

Although they agree that § 405(g) permits judicial review of the Appeals Council’s dismissal in this case, Smith and the Government disagree somewhat about the scope of review on remand.¹⁹ Smith argues that if a reviewing court disagrees with the procedural ground for dismissal, it can then proceed directly to the merits, while the Government argues that the proper step in such a case would be to remand. We largely agree with the Government.

To be sure, there would be jurisdiction for a federal court to proceed to the merits in the way that Smith avers. For one, as noted above, exhaustion itself is not a jurisdictional prerequisite. See *supra*, at 478. Moreover, § 405(g) states that a reviewing “court shall have power to enter, upon the pleadings and transcript of the record, a judgment affirming, modifying, or reversing the decision of the Commissioner of Social Security, with or without remanding the cause for a rehearing”—a broad grant of authority that reflects the high “degree of direct interaction between a federal court and an administrative agency” envisioned by § 405(g). *Hudson*, 490 U. S., at 885. In short, there is no jurisdictional bar to a court’s reaching the merits.

¹⁹ The parties agree, as do we, on the standard of review: abuse of discretion as to the overall conclusion, and “substantial evidence” “as to any fact.” See § 405(g); see also Brief for Respondent 43–44; Tr. of Oral Arg. 5; cf. *Bowen v. City of New York*, 476 U. S. 467, 483 (1986) (“Ordinarily, the Secretary has discretion to decide when to waive the exhaustion requirement”).

Opinion of the Court

Fundamental principles of administrative law, however, teach that a federal court generally goes astray if it decides a question that has been delegated to an agency if that agency has not first had a chance to address the question. See, e. g., *INS v. Orlando Ventura*, 537 U. S. 12, 16, 18 (2002) (*per curiam*); *ICC v. Locomotive Engineers*, 482 U. S. 270, 283 (1987); cf. *SEC v. Chenery Corp.*, 318 U. S. 80, 88 (1943) (“For purposes of affirming no less than reversing its orders, an appellate court cannot intrude upon the domain which Congress has exclusively entrusted to an administrative agency”). The Court’s cases discussing exhaustion in the Social Security context confirm the prudence of applying this general principle here, where the agency’s final decision-maker has not had a chance to address the merits at all.²⁰ See *City of New York*, 476 U. S., at 485 (“Because of the agency’s expertise in administering its own regulations, the agency ordinarily should be given the opportunity to review application of those regulations to a particular factual context”); *Salfi*, 422 U. S., at 765 (explaining that exhaustion serves to “preven[t] premature interference with agency processes” and to give the agency “an opportunity to correct its own errors,” “to afford the parties and the courts the benefit of its experience and expertise,” and to produce “a record which is adequate for judicial review”). Accordingly, in an ordinary case, a court should restrict its review to the procedural ground that was the basis for the Appeals Council dismissal and (if necessary) allow the agency to address any residual substantive questions in the first instance.²¹

²⁰ We make no statement, by contrast, regarding the applicability of this line of cases to situations in which the Appeals Council has had a chance to address the merits. Cf. *Sims v. Apfel*, 530 U. S. 103, 110–112 (2000) (plurality opinion) (discussing why the inquisitorial nature of SSA proceedings counsels against imposing an issue-exhaustion requirement).

²¹ By the same token, remand may be forgone in rarer cases, such as where the Government joins the claimant in asking the court to reach the merits or where remand would serve no meaningful purpose.

Opinion of the Court

V

We hold that where the SSA’s Appeals Council has dismissed a request for review as untimely after a claimant has obtained a hearing from an ALJ on the merits, that dismissal qualifies as a “final decision . . . made after a hearing” within the meaning of § 405(g). The judgment of the United States Court of Appeals for the Sixth Circuit is therefore reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

Per Curiam

BOX, COMMISSIONER, INDIANA DEPARTMENT OF
HEALTH, ET AL. *v.* PLANNED PARENTHOOD OF
INDIANA AND KENTUCKY, INC., ET AL.ON PETITION FOR WRIT OF CERTIORARI TO THE UNITED
STATES COURT OF APPEALS FOR THE SEVENTH CIRCUIT

No. 18–483. Decided May 28, 2019

The Court of Appeals for the Seventh Circuit invalidated a provision of Indiana law relating to the disposition of fetal remains by abortion providers. The Indiana provision at issue excluded fetal remains from the definition of infectious and pathological waste, Ind. Code §§ 16–41–16–4(d), 16–41–16–5, thereby preventing incineration of fetal remains along with surgical byproducts, and also authorized simultaneous cremation of fetal remains, § 16–34–3–4(a). The law did not affect a woman’s right under existing law “to determine the final disposition of the aborted fetus.” § 16–34–3–2(a). The Seventh Circuit, applying a deferential rational basis review, first held that Indiana’s stated interest in “the ‘humane and dignified disposal of human remains’” was “not . . . legitimate.” The Seventh Circuit held that even if Indiana’s stated interest were legitimate, Indiana could not identify a rational relationship between that interest and “the law as written,” because the law preserves a woman’s right to dispose of fetal remains however she wishes and allows for simultaneous cremation.

Held: The Seventh Circuit clearly erred in failing to recognize Indiana’s “legitimate interest in proper disposal of fetal remains,” *Akron v. Akron Center for Reproductive Health, Inc.*, 462 U.S. 416, 452, n. 45, as a permissible basis for Indiana’s disposition law. Further, Indiana’s law is rationally related to the State’s interest in proper disposal of fetal remains, even if it is not perfectly tailored to that end. See *Armour v. Indianapolis*, 566 U.S. 673, 685. As litigated, this case does not address whether Indiana’s law imposes an undue burden on a woman’s right to obtain an abortion and therefore does not implicate the Court’s cases applying the undue burden test to abortion regulations.

Certiorari granted in part; 888 F. 3d 300, reversed.

PER CURIAM.

Indiana’s petition for certiorari argues that the Court of Appeals for the Seventh Circuit incorrectly invalidated two new provisions of Indiana law: the first relating to the dispo-

Per Curiam

sition of fetal remains by abortion providers; and the second barring the knowing provision of sex-, race-, or disability-selective abortions by abortion providers. See Ind. Code §§ 16-34-2-1.1(a)(1)(K), 16-34-3-4(a), 16-34-4-4, 16-34-4-5, 16-34-4-6, 16-34-4-7, 16-34-4-8, 16-41-16-4(d), 16-41-16-5 (2019). We reverse the judgment of the Seventh Circuit with respect to the first question presented, and we deny the petition with respect to the second question presented.

I

The first challenged provision altered the manner in which abortion providers may dispose of fetal remains. Among other changes, it excluded fetal remains from the definition of infectious and pathological waste, §§ 16-41-16-4(d), 16-41-16-5, thereby preventing incineration of fetal remains along with surgical byproducts. It also authorized simultaneous cremation of fetal remains, § 16-34-3-4(a), which Indiana does not generally allow for human remains, § 23-14-31-39(a). The law did not affect a woman's right under existing law "to determine the final disposition of the aborted fetus." § 16-34-3-2(a).

Respondents have never argued that Indiana's law creates an undue burden on a woman's right to obtain an abortion. Cf. *Planned Parenthood of Southeastern Pa. v. Casey*, 505 U. S. 833, 874 (1992) (plurality opinion). Respondents have instead litigated this case on the assumption that the law does not implicate a fundamental right and is therefore subject only to ordinary rational-basis review. See *Planned Parenthood of Ind. and Ky., Inc. v. Commissioner of Ind. State Dept. of Health*, 888 F. 3d 300, 307 (2018). To survive under that standard, a state law need only be "rationally related to legitimate government interests." *Washington v. Glucksberg*, 521 U. S. 702, 728 (1997).

The Seventh Circuit found Indiana's disposition law invalid even under this deferential test. It first held that Indiana's stated interest in "the 'humane and dignified disposal of

human remains’” was “not . . . legitimate.” 888 F. 3d, at 309. It went on to hold that even if Indiana’s stated interest were legitimate, “it [could not] identify a rational relationship” between that interest and “the law as written,” because the law preserves a woman’s right to dispose of fetal remains however she wishes and allows for simultaneous cremation. *Ibid.*

We now reverse that determination. This Court has already acknowledged that a State has a “legitimate interest in proper disposal of fetal remains.” *Akron v. Akron Center for Reproductive Health, Inc.*, 462 U. S. 416, 452, n. 45 (1983). The Seventh Circuit clearly erred in failing to recognize that interest as a permissible basis for Indiana’s disposition law. See *Armour v. Indianapolis*, 566 U. S. 673, 685 (2012) (on rational-basis review, “‘the burden is on the one attacking the legislative arrangement to negative every conceivable basis which might support it’”). The only remaining question, then, is whether Indiana’s law is rationally related to the State’s interest in proper disposal of fetal remains. We conclude that it is, even if it is not perfectly tailored to that end. See *ibid.* (the State need not have drawn “the perfect line,” as long as “the line actually drawn [is] a rational” one). We therefore uphold Indiana’s law under rational basis review.

We reiterate that, in challenging this provision, respondents have never argued that Indiana’s law imposes an undue burden on a woman’s right to obtain an abortion. This case, as litigated, therefore does not implicate our cases applying the undue burden test to abortion regulations. Other courts have analyzed challenges to similar disposition laws under the undue burden standard. See *Planned Parenthood of Ind. and Ky., Inc. v. Commissioner of Ind. State Dept. of Health*, 917 F. 3d 532, 535 (CA7 2018) (Wood, C. J., concurring in denial of rehearing en banc). Our opinion expresses no view on the merits of those challenges.

THOMAS, J., concurring

II

Our opinion likewise expresses no view on the merits of the second question presented, *i. e.*, whether Indiana may prohibit the knowing provision of sex-, race-, and disability-selective abortions by abortion providers. Only the Seventh Circuit has thus far addressed this kind of law. We follow our ordinary practice of denying petitions insofar as they raise legal issues that have not been considered by additional Courts of Appeals. See this Court’s Rule 10.

* * *

In sum, we grant certiorari with respect to the first question presented in the petition and reverse the judgment of the Court of Appeals with respect to that question. We deny certiorari with respect to the second question presented.

It is so ordered.

JUSTICE SOTOMAYOR would deny the petition for a writ of certiorari as to both questions presented.

JUSTICE THOMAS, concurring.

Indiana law prohibits abortion providers from treating the bodies of aborted children as “infectious waste” and incinerating them alongside used needles, laboratory-animal carcasses, and surgical byproducts. Ind. Code § 16–41–16–4(d) (2019); see §§ 16–41–16–2, 16–41–16–4, 16–41–16–5; Ind. Admin. Code, tit. 410, §§ 35–1–3, 35–2–1(a)(2) (2019). A panel of the Seventh Circuit held that this fetal-remains law was irrational, and thus unconstitutional, under the doctrine of “substantive due process.” That decision was manifestly inconsistent with our precedent, as the Court holds.¹ I

¹JUSTICE GINSBURG’s dissent from this holding makes little sense. It is not a “waste” of our resources to summarily reverse an incorrect decision that created a Circuit split. *Post*, at 2. And JUSTICE GINSBURG does not even attempt to argue that the decision below was correct. In-

would have thought it could go without saying that nothing in the Constitution or any decision of this Court prevents a State from requiring abortion facilities to provide for the respectful treatment of human remains.

I write separately to address the other aspect of Indiana law at issue here—the “Sex Selective and Disability Abortion Ban.” Ind. Code § 16–34–4–1 *et seq.* This statute makes it illegal for an abortion provider to perform an abortion in Indiana when the provider knows that the mother is seeking the abortion solely because of the child’s race, sex, diagnosis of Down syndrome, disability, or related characteristics. §§ 16–34–4–1 to 16–34–4–8; see § 16–34–4–1(b) (excluding “lethal fetal anomal[ies]” from the definition of disability). The law requires that the mother be advised of this restriction and given information about financial assistance and adoption alternatives, but it imposes liability only on the provider. See §§ 16–34–2–1.1(a)(1)(K), (2)(A)–(C), 16–34–4–9. Each of the immutable characteristics protected by this law can be known relatively early in a pregnancy, and the law prevents them from becoming the sole criterion for deciding whether the child will live or die. Put differently, this law and other laws like it promote a State’s compelling interest in preventing abortion from becoming a tool of modern-day eugenics.²

stead, she adopts Chief Judge Wood’s alternative suggestion that regulating the disposition of an aborted child’s body might impose an “undue burden” on the mother’s right to abort that (already aborted) child. See *post*, at 1. This argument is difficult to understand, to say the least—which may explain why even respondent Planned Parenthood did not make it. The argument also lacks evidentiary support. See *Planned Parenthood of Ind. and Ky., Inc. v. Commissioner of Ind. State Dept. of Health*, 917 F. 3d 532, 538 (CA7 2018) (en banc) (Easterbrook, J., dissenting).

² See, *e.g.*, Ariz. Rev. Stat. Ann. § 13–3603.02(2018) (sex and race); Ark. Code § 20–16–1904 (2018) (sex); Kan. Stat. Ann. § 65–6726 (2017 Cum. Supp.) (sex); La. Rev. Stat. Ann. § 40:1061.1.2(2019 Cum. Supp.) (genetic abnormality); N.C.

THOMAS, J., concurring

The use of abortion to achieve eugenic goals is not merely hypothetical. The foundations for legalizing abortion in America were laid during the early 20th-century birth-control movement. That movement developed alongside the American eugenics movement. And significantly, Planned Parenthood founder Margaret Sanger recognized the eugenic potential of her cause. She emphasized and embraced the notion that birth control “opens the way to the eugenist.” Sanger, *Birth Control and Racial Betterment*, *Birth Control Rev.*, Feb. 1919, p. 12 (*Racial Betterment*). As a means of reducing the “ever increasing, unceasingly spawning class of human beings who never should have been born at all,” Sanger argued that “Birth Control . . . is really the greatest and most truly eugenic method” of “human generation.” M. Sanger, *Pivot of Civilization* 187, 189 (1922) (*Pivot of Civilization*). In her view, birth control had been “accepted by the most clear thinking and far seeing of the Eugenists themselves as the most constructive and necessary of the means to racial health.” *Id.*, at 189.

It is true that Sanger was not referring to abortion when she made these statements, at least not directly. She recognized a moral difference between “contraceptives” and other, more “extreme” ways for “women to limit their families,” such as “the horrors of abortion and infanticide.” M. Sanger, *Woman and the New Race* 25, 5 (1920) (*Woman and the New Race*). But Sanger’s arguments about the eugenic value of birth control in securing “the elimination of the unfit,” *Racial Betterment* 11, apply with even greater

Gen. Stat. Ann. § 90–21.121 (2017) (sex); N. D. Cent. Code Ann. § 14–02.1–04.1 (2017) (sex and genetic abnormality); Ohio Rev. Code Ann. § 2919.10 (Lexis Supp. 2018) (Down syndrome); Okla. Stat., Tit. 63, § 1–731.2(B) (2016) (sex); 18 Pa. Cons. Stat. § 3204(c) (2015) (sex); S. D. Codified Laws § 34–23A–64 (2018) (sex). My focus on a State’s compelling interest in prohibiting eugenics in abortion does not suggest that States lack other compelling interests in adopting these or other abortion-related laws.

force to abortion, making it significantly more effective as a tool of eugenics. Whereas Sanger believed that birth control could prevent “unfit” people from reproducing, abortion can prevent them from being born in the first place. Many eugenicists therefore supported legalizing abortion, and abortion advocates—including future Planned Parenthood President Alan Guttmacher—endorsed the use of abortion for eugenic reasons. Technological advances have only heightened the eugenic potential for abortion, as abortion can now be used to eliminate children with unwanted characteristics, such as a particular sex or disability.

Given the potential for abortion to become a tool of eugenic manipulation, the Court will soon need to confront the constitutionality of laws like Indiana’s. But because further percolation may assist our review of this issue of first impression, I join the Court in declining to take up the issue now.

I

The term “eugenics” was coined in 1883 by Francis Galton, a British statistician and half-cousin of Charles Darwin. See S. Caron, *Who Chooses?: American Reproductive History Since 1830*, p. 49 (2008); A. Cohen, *Imbeciles: The Supreme Court, American Eugenics, and the Sterilization of Carrie Buck* 46 (2016) (*Imbeciles*). Galton described eugenics as “the science of improving stock” through “all influences that tend in however remote a degree to give to the more suitable races or strains of blood a better chance of prevailing speedily over the less suitable than they otherwise would have.” F. Galton, *Inquiries Into Human Faculty and Its Development* 25, n. 1 (1883). Eugenics thus rests on the assumption that “man’s natural abilities are derived by inheritance, under exactly the same limitations as are the form and physical features of the whole organic world.” F. Galton, *Hereditary Genius: An Inquiry Into Its Laws and Consequences* 1 (1869) (*Hereditary Genius*); see *Imbeciles* 46–47. As a social theory, eugenics is rooted in social

THOMAS, J., concurring

Darwinism—*i. e.*, the application of the “survival of the fittest” principle to human society. Caron, *supra*, at 49; Imbeciles 45. Galton argued that by promoting reproduction between people with desirable qualities and inhibiting reproduction of the unfit, man could improve society by “do[ing] providently, quickly, and kindly” “[w]hat Nature does blindly, slowly, and ruthlessly.” F. Galton, *Eugenics: Its Definition, Scope and Aims*, in *Essays in Eugenics* 42 (1909).

By the 1920s, eugenics had become a “full-fledged intellectual craze” in the United States, particularly among progressives, professionals, and intellectual elites. Imbeciles 2; see *id.*, at 2–4, 55–57; Cohen, *Harvard’s Eugenics Era*, *Harvard Magazine*, pp. 48–52 (Mar.–Apr. 2016) (*Harvard’s Eugenics Era*). Leaders in the eugenics movement held prominent positions at Harvard, Stanford, and Yale, among other schools, and eugenics was taught at 376 universities and colleges. Imbeciles 4; see also *Harvard’s Eugenics Era* 48. Although eugenics was widely embraced, Harvard was “more central to American eugenics than any other university,” with administrators, faculty members, and alumni “founding eugenics organizations, writing academic and popular eugenics articles, and lobbying government to enact eugenics laws.” *Ibid.*; see *id.*, at 49–52. One Harvard faculty member even published a leading textbook on the subject through the Harvard University Press, *Genetics and Eugenics*. *Id.*, at 49.

Many eugenicists believed that the distinction between the fit and the unfit could be drawn along racial lines, a distinction they justified by pointing to anecdotal and statistical evidence of disparities between the races. Galton, for example, purported to show as a scientific matter that “the average intellectual standard of the negro race is some two grades below” that of the Anglo-Saxon, and that “the number among the negroes of those whom we should call half-witted men, is very large.” *Hereditary Genius* 338–339. Other eugenicists similarly concluded that “the Negro . . . is

in the large eugenically *inferior* to the white” based on “the relative achievements of the race” and statistical disparities in educational outcomes and life expectancy in North America, among other factors. P. Popenoe & R. Johnson, *Applied Eugenics* 285 (1920) (*Applied Eugenics*); see *id.*, at 280–297 (elaborating on this view); see also, *e. g.*, R. Gates, *Heredity and Eugenics* 234 (1923) (citing disparities between white and black people and concluding that “the negro’s mental status is thus undoubtedly more primitive than that of the white man”); Hunt, Hand, Pettis, & Russell, *Abstract, Family Stock Values in White-Negro Crosses: A Note on Miscegenation*, 8 *Eugenical News* 67 (1923) (“Experiments, as well as general experience, indicate that the average in-born intelligence of the white man is considerably higher than that of the negro”).

Building on similar assumptions, eugenicist Lothrop Stoddard argued that the “prodigious birth-rate” of the nonwhite races was bringing the world to a racial tipping point. L. Stoddard, *The Rising Tide of Color Against White World-Supremacy* 8–9 (1920). Stoddard feared that without “artificial barriers,” the races “will increasingly mingle, and the inevitable result will be the supplanting or absorption of the higher by the lower types.” *Id.*, at 302. Allowing the white race to be overtaken by inferior races, according to Stoddard, would be a tragedy of historic proportions:

“[T]hat would mean that the race obviously endowed with the greatest creative ability, the race which had achieved most in the past and which gave the richer promise for the future, had passed away, carrying with it to the grave those potencies upon which the realization of man’s highest hopes depends. A million years of human evolution might go uncrowned, and earth’s supreme life-product, man, might never fulfil his potential destiny. This is why we today face ‘The Crisis of the Ages.’” *Id.*, at 304.

THOMAS, J., concurring

Eugenic arguments like these helped precipitate the Immigration Act of 1924, which significantly reduced immigration from outside of Western and Northern Europe. §§ 11(a)–(b), 43 Stat. 159; Imbeciles 126–135; see also *id.*, at 135 (discussing the difficulties the Act created for many Jews seeking to flee Nazism). The perceived superiority of the white race also led to calls for race consciousness in marital and reproductive decisions, including through antiscegenation laws. Applied Eugenics 296 (“We hold that it is to the interests of the United States . . . to prevent further Negro-white amalgamation”).

Although race was relevant, eugenicists did not define a person’s “fitness” exclusively by race. A typical list of dysgenic individuals would also include some combination of the “feeble-minded,” “insane,” “criminalistic,” “deformed,” “crippled,” “epileptic,” “inebriate,” “diseased,” “blind,” “deaf,” and “dependent (including orphans and paupers).” Imbeciles 139; see Applied Eugenics 176–183; cf. G. Chesterton, *Eugenics and Other Evils* 61 (1922) (“[F]eeble-mindedness is a new phrase under which you might segregate anybody” because “this phrase conveys nothing fixed and outside opinion”). Immigration policy was insufficient to address these “danger[s] from within,” Imbeciles 4, so eugenicists turned to other solutions. Many States adopted laws prohibiting marriages between certain feeble-minded, epileptic, or other “unfit” individuals, but forced sterilization emerged as the preferred solution for many classes of dysgenic individuals. *Id.*, at 63, 66. Indiana enacted the first eugenic sterilization law in 1907, and a number of other States followed suit. *Id.*, at 70.

This Court threw its prestige behind the eugenics movement in its 1927 decision upholding the constitutionality of Virginia’s forced-sterilization law, *Buck v. Bell*, 274 U. S. 200. The plaintiff, Carrie Buck, had been found to be “a feeble minded white woman” who was “the daughter of a feeble minded mother . . . and the mother of an illegitimate feeble

minded child.” *Id.*, at 205.³ In an opinion written by Justice Oliver Wendell Holmes, Jr., and joined by seven other Justices, the Court offered a full-throated defense of forced sterilization:

“We have seen more than once that the public welfare may call upon the best citizens for their lives. It would be strange if it could not call upon those who already sap the strength of the State for these lesser sacrifices, often not felt to be such by those concerned, in order to prevent our being swamped with incompetence. It is better for all the world, if instead of waiting to execute degenerate offspring for crime, or to let them starve for their imbecility, society can prevent those who are manifestly unfit from continuing their kind. The principle that sustains compulsory vaccination is broad enough to cover cutting the Fallopian tubes. Three generations of imbeciles are enough.” *Id.*, at 207 (citation omitted).

The Court’s decision gave the eugenics movement added legitimacy and considerable momentum; by 1931, 28 of the Nation’s 48 States had adopted eugenic sterilization laws. Imbeciles 299–300. Buck was one of more than 60,000 people who were involuntarily sterilized between 1907 and 1983. *Id.*, at 319.

Support for eugenics waned considerably by the 1940s as Americans became familiar with the eugenics of the Nazis and scientific literature undermined the assumptions on which the eugenics movement was built. But even today, the Court continues to attribute legal significance to the same types of racial-disparity evidence that were used to justify race-based eugenics. See T. Sowell, *Discrimination*

³The finding that Buck was “feeble minded” was apparently wrong. See P. Lombardo, *Three Generations, No Imbeciles: Eugenics, the Supreme Court, and Buck v. Bell* 277 (2008) (arguing that “the case was a sham”); see Imbeciles 15–35 (arguing that Buck had perfectly normal intelligence and no medical records of any disability).

THOMAS, J., concurring

and Disparities 5–6 (rev. ed. 2019) (Sowell).⁴ And support for the goal of reducing undesirable populations through selective reproduction has by no means vanished.

II

This case highlights the fact that abortion is an act rife with the potential for eugenic manipulation. From the beginning, birth control and abortion were promoted as means of effectuating eugenics. Planned Parenthood founder Margaret Sanger was particularly open about the fact that birth control could be used for eugenic purposes. These arguments about the eugenic potential for birth control apply with even greater force to abortion, which can be used to target specific children with unwanted characteristics. Even after World War II, future Planned Parenthood President Alan Guttmacher and other abortion advocates endorsed abortion for eugenic reasons and promoted it as a means of controlling the population and improving its quality. As explained below, a growing body of evidence sug-

⁴ Both eugenics and disparate-impact liability rely on the simplistic and often faulty assumption that “some one particular factor is the key or dominant factor behind differences in outcomes” and that one should expect “an even or random distribution of outcomes . . . in the absence of such complicating causes as genes or discrimination.” Sowell 25, 87. Among other pitfalls, these assumptions tend to collapse the distinction between correlation and causation and shift the analytical focus away from “flesh-and-blood human being[s]” to impersonal statistical groups frozen in time. *Id.*, at 83; see *id.*, at 87–149 (explaining how statistics and linguistics can be used to obscure realities). Just as we should not assume, based on bare statistical disparities, “that the Negro lacks in his germ-plasm excellence of some qualities which the white races possess,” P. Popenoe & R. Johnson, *Applied Eugenics* 285 (1920), “[w]e should not automatically presume that any institution with a neutral practice that happens to produce a racial disparity is guilty of discrimination until proved innocent,” *Texas Dept. of Housing and Community Affairs v. Inclusive Communities Project, Inc.*, 576 U.S. 519, 554 (2015) (THOMAS, J., dissenting). Both views “ignore the complexities of human existence.” *Id.*, at 555.

gests that eugenic goals are already being realized through abortion.

A

Like many elites of her day, Sanger accepted that eugenics was “the most adequate and thorough avenue to the solution of racial, political and social problems.” Sanger, *The Eugenic Value of Birth Control Propaganda*, *Birth Control Rev.*, Oct. 1921, p. 5 (Propaganda). She agreed with eugenicists that “the unbalance between the birth rate of the ‘unfit’ and the ‘fit’” was “the greatest present menace to civilization.” *Ibid.* Particularly “in a democracy like that of the United States,” where “[e]quality of political power has . . . been bestowed upon the lowest elements of our population,” Sanger worried that “reckless spawning carries with it the seeds of destruction.” *Pivot of Civilization* 177–178.

Although Sanger believed that society was “indebted” to “the Eugenists” for diagnosing these problems, she did not believe that they had “show[n] much power in suggesting practical and feasible remedies.” *Id.*, at 178. “As an advocate of Birth Control,” Sanger attempted to fill the gap by showing that birth control had “eugenic and civilizational value.” *Propaganda* 5. In her view, birth-control advocates and eugenicists were “seeking a single end”—“to assist the race toward the elimination of the unfit.” *Racial Betterment* 11. But Sanger believed that the focus should be “upon stopping not only the reproduction of the unfit but upon stopping *all* reproduction when there is not economic means of providing proper care for those who are born in health.” *Ibid.* (emphasis added). Thus, for Sanger, forced sterilization did “not go to the bottom of the matter” because it did not “touc[h] the great problem of unlimited reproduction” of “those great masses, who through economic pressure populate the slums and there produce in their helplessness other helpless, diseased and incompetent masses, who overwhelm all that eugenics can do among those whose economic

THOMAS, J., concurring

condition is better.” *Id.*, at 12. In Sanger’s view, frequent reproduction among “the majority of wage workers” would lead to “the contributing of morons, feeble-minded, insane and various criminal types to the already tremendous social burden constituted by these unfit.” *Ibid.*

Sanger believed that birth control was an important part of the solution to these societal ills. She explained, “Birth Control . . . is really the greatest and most truly eugenic method” of “human generation,” “and its adoption as part of the program of Eugenics would immediately give a concrete and realistic power to that science.” *Pivot of Civilization* 189. Sanger even argued that “eugenists and others who are laboring for racial betterment” could not “succeed” unless they “first clear[ed] the way for Birth Control.” *Racial Betterment* 11. If “the masses” were given “practical education in Birth Control”—for which there was “almost universal demand”—then the “Eugenic educator” could use “Birth Control propaganda” to “direct a thorough education in Eugenics” and influence the reproductive decisions of the unfit. *Propaganda* 5. In this way, “the campaign for Birth Control [was] not merely of eugenic value, but [was] practically identical in ideal with the final aims of Eugenics.” *Ibid.*

Sanger herself campaigned for birth control in black communities. In 1930, she opened a birth-control clinic in Harlem. See *Birth Control or Race Control?* Sanger and the Negro Project, Margaret Sanger Papers Project Newsletter #28 (2001), http://www.nyu.edu/projects/sanger/articles/bc_or_race_control.php (all Internet materials as last visited May 24, 2019). Then, in 1939, Sanger initiated the “Negro Project,” an effort to promote birth control in poor, Southern black communities. *Ibid.* Noting that blacks were “‘notoriously underprivileged and handicapped to a large measure by a “caste” system,’” she argued in a fundraising letter that “‘birth control knowledge brought to this